IN THE COURT OF THE SECOND ADDITIONAL DISTRICT MUNSIF OF COIMBATORE

O.S. No. 249 of 2024

1. Arunadevi
2. K.S.M.Sabarigirisan - Plaintiffs

-Vs-

1. Nagaraj
2. Nagalakshmi
3. Sub-Register,
   Peelmaedu Sub-Register Office
   Coimbatore - Defendants

WRITTEN STATEMENT FILED BY THE 1ST DEFENDANT

1. The suit is false, frivolous and unsustainable in law and on facts of the case.

2. The plaintiffs are put to strict proof of all the allegations except those that are specifically admitted herein.

3. The averments in para 1 of the plaint regarding relationship between plaintiffs are put to strict proof by them. The averments is para 2 to 4 of the plaint that the plaintiff purchased 1st item of suit property from one Sathish Kumar under Sale Deed dated 15.02.2011 for valid consideration, who inturn purchased the same from TNHB under Sale Deed dated 15.02.2011 and since then the plaintiffs are enjoying the same by paying vacant land tax and they also fenced etc., are stoutly and categorically denied as false. So also, the averments that on the west of Item 1 of suit property there is a 30 ft. scheme road and FCI is also on west of 30 ft. and there is no other pathway available which is the one to access Item 1 of suit property etc., are stoutly and categorically denied as false.

4. The averments in para 5 of the plaint that the 1st defendant's father was owning Item no.2 of suit property as per Sale Deed dated 03.09.1997 which was acquired by 1st defendant after his father's death and similarly, the 2nd defendant is owning the Item 3 of the suit property as per Sale Deed dated 30.01.1993 which are all situated in 30 ft. scheme road and the defendants did not fence their properties eversince the date of purchase and without knowing the details of ownership of

defendants' property situate in 30 ft. scheme road, the plaintiff purchased Item No.1 of suit property with the aforesaid 30 ft. scheme road etc., are stoutly and categorically denied as false.

5. The averments in para 6 of the plaint that the defendants encroached Item No.1 of suit property with help of neighbours by removing fence on 11.09.2019 despite her ownership in an illegal manner and the 2nd plaintiff informed the Police and thereby they left Item No.1 of suit property and now the defendants are trying to construct in 30 ft. scheme road by affecting right of passage of the said 30 ft. common passage and thereby the plaintiffs filed a suit in O.S.No.1283/2019 etc., are stoutly and categorically denied as false except the filing of the suit.

6. The averments in para 7 of the plaint that without knowing the name of the 1st defendant, the earlier suit was filed against deceased father of 1st defendant which is pending now and despite it, now the defendants are trying to sell their property and thereby she became constrained to file the present suit for the relief of injunction by restraining the defendants from in anyway selling Item 2 and 3 of the suit property etc., are stoutly and categorically denied as false.

7. At the outset, this defendant submits that the suit is untenable in eye of law and on facts of the case. The plaintiffs have not approached this Hon'ble Court with clean hands and filed the suit by abusing process of law. Further, there is no cause of action at all for filing such kind of suit since there was no declaratory relief sought for. As such, the suit filed without relief of declaration of ownership of title, the bare injunction suit filed for the relief not to alienate defendant's property is hit under Order 2 Rule 2 of CPC. The suit is also bad for non-joinder of parties since plaintiff's vendor Sathish Kumar was not added as party.

8. Without prejudice, this defendant submits that his father Mr.Balraj purchased Item No.2 of the suit property from one S.Rangasamy under Sale Deed dated 03.09.1997 which inturn the vendor Rangasamy purchased the said property under Sale Deed dated 10.04.1991. The patta pertaining to this defendant's property got mutated in his father's favour and thus, his father became absolute owner of said property who inturn bequeathed the same to this defendant under Will dated 25.05.2012 registered as Doc.No.151/2012 at SRO, Peelamedu. This defendant also

submits that the property of this defendant situates in S.F.No.3, Krishnarayapuram Village, which was about to acquire by Tamil Nadu Housing Board from his vendor Rangasamy and the said proceedings were quashed by Hon'ble High Court in W.P.No.9747/1989 and Writ Appeal No.1825/2000. Thus, the lands in S.F.No.3 absolutely belonged to this defendant's vendor who inturn sold it to this defendant. Similarly, this defendant's vendor S.Rangasamy got purchased the land from one Narayanasamy under Sale Deed dated 10.04.1981 and the vendor Narayanasamy got it through partition under Partition Deed Doc.No.4351/1942 hence, this defendant's vendor owning the properties in S.F.No.3 ancestrally and there is no scheme road at all as alleged by plaintiffs.

9. Further, this defendant approached TNHB towards sale of Item No.1 of suit property to plaintiff's vendor P.L.Sathish Kumar under Sale Deed dated 15.02.2011 registered as Doc.No.1053/2011 at SRO, Ganapathy and at that time, he came to know that the said Sale Deed stood in the name of P.L.Sathish kumar is bogus and TBHB did not at all execute any Sale Deed in his favour through Executive Engineer. This defendant will produce the RTI information dated ____ at the time of trial. As such, the alleged sale deed in favour of plaintiffs dated 26.11.2012 is void and through which the plaintiffs cannot claim any title pertaining to alleged Item No.1 of suit property. Moreso, the second suit filed by the plaintiffs also hit under Order 2 Rule 2 since the plaintiffs whatever be the remedy available should have claim in earlier suit (without prejudice). Thus, this defendant is absolute owner of Item 2 of suit property which is not situated in any scheme road muchless, the alleged 30 ft. scheme road as alleged by plaintiffs. Rather to say the plaintiffs by themselves admitted in their plaint that they purchased the Item No.1 of the suit property without knowing the adjoining ownership of these defendants but now, to avoid their liability of losing property, alleged that the defendants property are situated in alleged 30 ft. scheme road which is otherwise false. The suit is devoid of merits.

Therefore, it is prayed that this Hon'ble Court may be pleased to dismiss the suit with cost.

ADVOCATE FOR 1st DEFENDANT **1st DEFENDANT**

VERIFICATION

I, the 1st defendant above named do hereby declare that the facts stated above are true and correct to the best of our knowledge and I signed the same at Coimbatore on

1st DEFENDANT

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   Coimbatore

- Defendants

WRITTEN STATEMENT FILED BY THE 1ST DEFENDANT

Pre.on:

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